

## 26STCP01796 26STCP01796

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-12

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=SS%20%2C25%2C08%2F12%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C08%2F12%2F2026)

Source SHA-256: 4ef6660cc905e3f1b7f8c0d075d1df8604c7d900fd5b1dabc2b913d07e9b4252

Case Number: 26STCP01796 Hearing Date: August 12, 2026 Dept: 25

HEARING DATE: Wed., August 12, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Palo Verde Advisory LLC v. Kim PET. FILED: 05-08-26

CASE NUMBER: 26STCP01796

NOTICE: OK

PROCEEDINGS: PETITION BY PALO VERDE ADVISORY LLC FOR RELEASE OF MECHANIC'S LIEN; REQUEST FOR ATTORNEY'S FEES IN THE AMOUNT OF \$4,200.00

MOVING PARTY: Petitioner Palo Verde Advisory LLC

RESP. PARTY: None

PETITION TO RELEASE MECHANIC'S LIEN; REQUEST FOR ATTORNEY FEES

(Civ. Code § 8460, et seq.)

TENTATIVE RULING:

The Court GRANTS Palo Verde Advisory LLC's petition to release a mechanics lien. The Court awards Palo Verde \$3,370.00, reflecting \$3,000.00 in attorney fees and \$370.00 in costs.

The Petitioner is directed to serve and electronically

submit a proposed form of Order, consistent with this Court's Ruling – within

10 days.

Palo Verde is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] At least 15 Days Lapsed (Civ. Code § 8486(b)) OK

[X] Correct Manner of Service (Civ. Code § 8486(b)) OK

OPPOSITION: None filed as of August 7, 2026 [ ] Late [X] None

REPLY: None filed as of August 7, 2026 [ ] Late [X] None

ANALYSIS:

Palo Verde petitions this Court to release property located at 30048 Knoll View Drive, Palos Verdes, California 90275 from a mechanics lien recorded in 2023 by Soo Yon Kim.

After a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." (Civ. Code, § 8480, subd. (a).) A claimant must commence an action to enforce a lien within 90 days of recording it, otherwise the claim of the lien expires and is unenforceable. (Civ. Code, § 8460, subd. (a).)

Palo Verde has now properly complied with the service requirements, petition allegation requirements, and demand requirements. (Civ. Code, §§ 8108, 8482, 8484, 8486.) Kim did not file an opposition to the petition. Accordingly, the Court GRANTS Palo Verde's petition to release the mechanics lien.

As the prevailing party on the petition, Palo Verde is entitled to reasonable attorney fees and costs. (Civ. Code, § 8488, subd. (c); Code Civ. Proc., § 1032.) Palo Verde requests \$4,200.00 in fees, reflecting its attorney's five hours for preparing the petition, one hour for preparing a reply, and one hour for attending this hearing, at a rate of \$600.00 per hour. Both the rate and number of hours expended on preparing the petition are reasonable. However, given the lack of need for a reply, the Court awards attorney fees in the reduced amount of \$3,000, reflecting five total hours of attorney work. Palo Verde also requests \$370.00 for the petition's filing fee. That's reasonable. Accordingly, the Court awards Palo Verde a reduced total of \$3,370.00, reflecting \$3,000.00 in attorney fees and \$370.00 in costs.

The Petitioner is directed to serve and electronically

submit a proposed form of Order, consistent with this Court's Ruling – within

10 days.

Palo Verde is to give notice.